

BEFORE THE STATE BOARD OF REGISTERED PSYCHOTHERAPISTS AND THE STATE BOARD
OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2019-2764

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE REGISTRATION TO
PRACTICE AS A REGISTERED PSYCHOTHERAPIST IN THE STATE OF COLORADO AND THE
APPLICATION TO PRACTICE AS A PROFESSIONAL COUNSELOR IN THE STATE OF
COLORADO OF JESSICA RAMOSKA, F/K/A JESSICA VILLANUEVA, REGISTRATION NO. RP
105071, LPC NO. (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Registered
Psychotherapists and the State Board of Licensed Professional Counselor Examiners
(together, "Boards") and Jessica Ramoska, F/K/A Jessica Villanueva ("Applicant") as
follows:

1. On or about March 19, 2019, Applicant applied for a license to practice
as a professional counselor ("LPC") in the State of Colorado ("LPC Application"), and
her request is currently pending.
2. Applicant was registered to practice as a Registered Psychotherapist
("RP") in the State of Colorado at all times relevant herein.
3. The Boards have jurisdiction over Applicant, her RP registration, the LPC
Application, and the subject matter of this Stipulation and Final Agency Order
("Order").
4. This Order is a full and final resolution of case number 2019-2764. This
Order does not resolve any other cases, complaints, or matters, known or unknown to
the Boards or Applicant, as of the effective date of this Order.
5. Applicant admits the following:
 - a. On or around December 2014, Applicant completed an internship
and around August 2015, became a partner and therapist in private
practice at another counseling agency.

- b. Applicant failed to obtain a mandatory disclosure statement for SH, when SH transitioned from being a client during Applicant's internship to Applicant's client in her private practice.
- c. Applicant took client files from her internship to her private practice without the authority to do so.
- d. Applicant's mandatory disclosure statement did not identify Applicant's agency and listed a different name for Applicant.
- e. Applicant failed to update her name with the RP Board in accordance with Board Rule 8.
- f. On or around July 5, 2018, Applicant entered into and is currently under a Stipulation and Final Agency Order with the State Board of Registered Psychotherapists in case number 2016-5280 ("2018 Order") that includes the terms as outlined below. This Order is a continuation of the 2018 Order and is intended to also include Applicant's LPC Application and case number 2019-2764.

6. By virtue of the facts admitted in paragraph 5 above, Applicant admits and the Boards finds that Applicant violated sections 12-43-214(1), 12-43-222(1)(b), (g)(l), and (p), C.R.S., and Board Rules 8(a), which state:

12-43-214. Mandatory disclosure of information to clients. (1) Except as otherwise provided in subsection (4) of this section, every licensee, registrant, or certificate holder shall provide the following information in writing to each client during the initial client contact.

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(b) Has violated or attempted to violate, directly or indirectly, or assisted or abetted the violation of, or conspired to violate any provision or term of this article or rule promulgated pursuant to this article or any order of a board established pursuant to this article;

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by

state and national associations of practitioners in the field of the person's professional discipline;

(p) Has failed to comply with any of the requirements pertaining to mandatory disclosure of information to clients pursuant to section 12-43-214.

Rule 8. Reporting Change of Address, Telephone Number, or Name.

(a) Registered psychotherapists shall inform the Division of any name, telephone number or address change within thirty (30) days of such change. Staff shall not change registered psychotherapist's information without written notification from the registered psychotherapist. Notification via mail, fax, e-mail, and the online system is acceptable. Verbal notification is not acceptable

(a) Licensees shall inform the Division of any name, telephone number or address change within thirty (30) days of such change. Staff shall not change Licensees' information without written notification from the Licensee. Notification via mail, fax, email and the online system is acceptable. Verbal notification is not acceptable.

7. By virtue of the admissions contained in paragraphs 5 and 6 above, Applicant specifically agrees to maintain her RP registration as previously granted and to accept a LPC license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by sections 12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a LPC license. Applicant consents to the following limitations to her RP registration and LPC license within the meaning of section 24-4-104(11), C.R.S. Applicant acknowledges that by accepting this LPC license in lieu of a formal hearing, Applicant waives all remedies outlined in sections 12-43-212 and 24-4-104(9), C.R.S.

PROBATION

8. Applicant's registration to practice psychotherapy and license to practice professional counseling in the State of Colorado are hereby placed on probation for two (2) years commencing from the effective date of the 2018 Order, or the date Applicant's practice monitor was approved, whichever date is later. During the probationary period, Applicant shall be bound by the terms and restrictions set forth in this Order.

9. The period of probation is tolled during any time that Applicant is not practicing in this state, and such period of probation shall resume at such time as Applicant resumes practicing in the State of Colorado in accordance with this Order.

10. Credit toward the period of probation will be given only for the period of time during which Applicant is practicing as a RP and LPC in Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

11. If, after twelve (12) months of probation, Applicant has adhered to all terms and conditions of this Order, and in the event that Applicant's practice monitor agrees, Applicant may request termination of probation and the practice monitor requirement. Request for termination of probation and the practice monitor must be made in writing to the Boards, and Applicant is responsible for establishing, to the satisfaction of the Boards, that she has satisfied the terms and conditions of practice monitoring. It is at the Boards' discretion whether or not to approve Applicant's request to terminate probation and the practice monitor requirement.

PRACTICE MONITOR

12. During the term of probation, Applicant's practice shall be monitored by a practice monitor. If Applicant has not already done so, within 30 days of the effective date of this Order, Applicant shall submit, in writing, three (3) proposed practice monitors for the Boards' approval. Applicant shall include a program-approved practice monitor application from each potential monitor, with attached curriculum vita or resume. The practice monitor shall meet the following criteria:

- a. The practice monitor shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado and may not be a volunteer, employee, or member of Crossroads Church;
- b. It is recommended that the practice monitor have a minimum of five (5) years of experience and has not been subject to professional discipline; and
- c. The practice monitor shall have no current or past financial or personal interest in Applicant or Applicant's practice. Former employees and business associates fall under this provision.

13. Applicant must have a practice monitor approved by the Boards within two (2) months of the effective date of this Order. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until a practice monitor is approved.

14. After the Boards' written approval of the practice monitor, Applicant and the practice monitor shall enter into a written contract for monitoring within 30 days. If this requirement is not satisfied, Applicant must cease practice and agrees to suspension of her practice until the written contract for practice monitoring is executed. The practice monitor shall provide a copy of the written contract to the Boards as a part of his/her first report to the Boards. The contract must contain a

provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Applicant's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Applicant's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

15. The practice monitor shall conduct a practice evaluation during the first month of practice monitoring. The practice evaluation shall examine all aspects of Applicant's practice or proposed practice and her qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether she has the necessary qualifications, current ability, and competence to practice. The first practice monitoring report shall include the findings of the practice evaluation.

16. Should the Boards determine from the practice monitor's evaluation that Applicant cannot practice any part of her practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Applicant shall immediately cease any part of the practice that the Boards determines, based on the evaluation, she is not qualified, competent, or safe to conduct. Based on the Boards' findings and the evaluation, the Boards will determine necessary actions that Applicant must take and conditions Applicant must meet so that Applicant can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Boards finds Applicant is not qualified, competent, and safe to practice. Once Applicant satisfies the Boards that she is qualified, competent, and safe to fully practice, Applicant may resume full practice.

17. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least once each month for the first six (6) months of practice monitoring. Applicant and her practice monitor must review and discuss each of Applicant's active cases at least once every month for six (6) months in order to allow the practice monitor to be able to determine whether Applicant is practicing psychotherapy in accordance with generally accepted standards of practice and with skill and safety for her clients. Following the first six (6) months of practice monitoring, unless otherwise ordered by the Boards, practice monitoring sessions shall occur for one (1) hour, or such longer time as the practice monitor deems necessary, for every twenty (20) hours of client contact, but at least every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

18. The practice monitor shall submit a written report to the Boards on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first six (6) reports. After the submission of the first six (6) reports, unless otherwise ordered

by the Boards, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

19. If at any time the Boards has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Boards meeting necessary to address the Boards' concerns. The Boards will give the practice monitor 30 days notice prior to requiring the practice monitor's attendance at the Boards meeting.

20. If at any time the practice monitor believes Applicant is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Applicant. Upon submission of such a report, Applicant shall immediately cease the practice of professional counseling.

21. Applicant shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards. If, in the Boards' judgment, the practice monitor fails to perform the function specified by this Order, the Boards may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Applicant shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

22. Applicant or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards not less than 60 days before the date of termination. The notice shall state the reason for the termination. Applicant shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Boards in accordance with this Order.

CONTINUING EDUCATION

23. During the period of probation, Applicant must successfully complete at least twenty (20) hours of Board-approved professional continuing education ("CE") courses each year in the areas of ethics and recordkeeping. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Applicant shall ensure that a certificate of completion is provided to the Boards.

UPDATE INFORMATION

24. Applicant shall immediately update her contact information with the Boards, as per Board Rules 8.

TERMS AND CONDITIONS

25. Applicant will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

26. Applicant shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

27. All expenses incurred or associated with the practice evaluation, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Boards.

28. In the event Applicant relocates at any time during the probationary period, Applicant shall notify the Boards of the change of address within 30 days of the effective date of such change.

29. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to sections 12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

31. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

32. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of section 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to sections 12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

33. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

34. Applicant shall obey all state and federal laws while this Order is in effect.

35. This Order constitutes the entire agreement between Applicant and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

36. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Boards, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Boards. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Boards.

37. This Order shall be admissible as evidence at any hearing held before the Boards.

38. This Order shall be a public record in the custody of the Boards.

ACCEPTED AND AGREED BY:

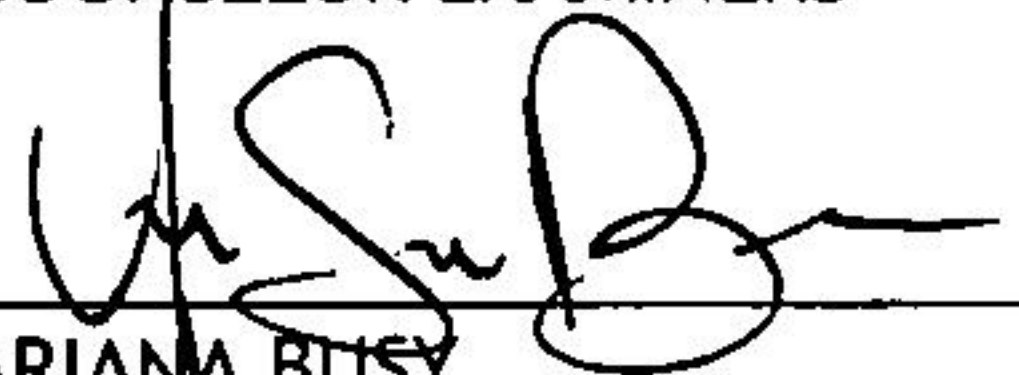
APPLICANT



JESSICA RAMOSKA, F/K/A JESSICA
VILLANUEVA
NLC 105071
LPC (Pending)

ACCEPTED AND ORDERED BY:

STATE BOARD OF REGISTERED
PSYCHOTHERAPISTS AND STATE
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



ARIANA BUSY
Program Director

Effective Date: This 10th day of
September, 2019.